

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIRMATION IN
OPPOSITION**

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #002

Defendants.
-----X

1. John N. Cuomo, an attorney duly licensed to practice law in the State of New York, affirms under penalties of perjury as follows:

2. I represent plaintiffs Diane C. DeSousa (“Mrs. DeSousa”) and Thomas E. DeSousa (“Mr. DeSousa”) (Mrs. DeSousa and Mr. DeSousa collectively “Plaintiffs”) in the above-entitled action.

3. As such I am fully familiar with the facts and circumstances of the case, and I make the following statements based upon my personal knowledge, information, and belief.

4. I submit this Affirmation in Opposition to defendant Richard A. Calvagno II’s (“Calvagno”) motion for summary judgement seeking to dismiss Plaintiffs’ action against Calvagno in its entirety, an award of legal fees, and such other and further relief (see [NYSCEF#36-49](#))¹.

5. Plaintiffs commenced this action by way of Summons and Complaint against Calvagno II and Patrick J. Karcher (“Karcher”) on January 8, 2021, setting forth causes of action for private nuisance, public nuisance, nuisance per se, and intentional infliction of emotional

¹ See CPLR§ 2214(c).

distress (Plaintiffs' Complaint; [NYSCEF#2](#)). Plaintiffs reside directly across the street from the property owned by defendants and occupied by Calvagno. Plaintiffs' claims relate to Calvagno's (1) tortious operation and use of his high-powered Dodge Charger Hellcat; (2) engagement in restricted commercial activity at his property, including boat slip rentals and catering; and (3) his allowance of trash and debris to collect in front of his property causing a rat infestation at Plaintiffs' property.

6. Following completion of paper discovery and depositions, Calvagno submitted the instant motion for summary judgement seeking to dismiss all of Plaintiffs' claims. Calvagno's application for relief ultimately boils down to two completely unavailing arguments: that this Court must ignore the evidence and accept his blanket denials of wrongdoing and should dismiss Plaintiffs' claims against him because he is openly gay. However, as demonstrated below, Calvagno does not even refute the material facts underlying Plaintiffs' claims. For example, Calvagno does not contest or refute the excessive and unreasonable noise caused by his vehicle or that the people who attend his parties and park boats in his backyard flood the street, park in front of Plaintiffs' home or block their driveway. Calvagno's abject failure to provide sufficient proof overcoming any of Plaintiffs' claims is detrimental to his summary judgement motions. It is for this reason Calvagno has desperately and pathetically attempted to make this case about his sexual identity rather than the facts and evidence supporting each of Plaintiffs' cause of actions.

7. For all the following reasons, Calvagno's motion for summary judgement should be denied in its entirety because there exists material, triable issues of fact on each of Plaintiffs' cause of actions.

ARGUMENT

A. Standard for Summary Judgement

8. On any motion for summary judgment, the moving party must make a prima facie showing of its entitlement to judgment as a matter of law by the submission of evidentiary proof in admissible form sufficient to establish the absence of any material, triable issue of fact (CPLR §3212(b); *Jacobsen v. New York City Health & Hosps. Corp.*, 22 N.Y.3d 824 (2014)). “[O]n a motion for summary judgment, facts must be viewed in the light most favorable to the non-moving party” (*Id.* at 833). If the moving party meets this burden, the burden then shifts to the non-moving party to “establish the existence of material issues of fact which require a trial of the action” (*Id.*).

9. As set forth below, Plaintiffs’ have identified material, triable issues of fact precluding Calvagno’s motion for summary judgement.

B. First Cause of Action: Private Nuisance

10. The elements of a private nuisance cause of action are an interference (1) substantial in nature, (2) intentional in origin, (3) unreasonable in character, (4) with a person's property right to use and enjoy land, (5) caused by another's conduct in acting or failure to act (*Aristides v. Foster*, 73 A.D.3d 1105, 1106 (2d Dep’t 2010)). The interference “must not be fanciful, slight or theoretical, but certain and substantial, and must interfere with the physical comfort of the ordinarily reasonable person” (*Matteliano v. Skitkzi*, 85 A.D.3d 1552, 1553 (4th Dept. 2011), lv denied 17 N.Y.3d 714, 2011 WL 4977184 (2011)). “[E]xcept for the issue of whether the plaintiff has the requisite property interest, each of the other elements is a question for the jury, unless the evidence is undisputed” (*Broxmeyer v. United Cap. Corp.*, 79 A.D.3d 780, 782-83 (2d Dep’t 2010)) (internal citations omitted).

11. Here, Plaintiffs have raised triable issues of fact as to whether Calvagno’s conduct,

in totality, constituted a private nuisance, including the unreasonable and excessive noise caused by his vehicle, commercial use of his property, and allowance of trash and debris to collect in front of his home. Each instance of Calvagno's collective misconduct is addressed separately below. Significantly, each of the referenced conduct began in or around 2020 and has occurred continuously throughout the entirety of this action without abatement.

i. Vehicle Noise

12. Calvagno has failed to refute Plaintiffs' claim that the noise generated by his vehicle constitutes a nuisance. The evidence demonstrates that Calvagno would purposefully idle and rev his high-performance Dodge Charger Hellcat in his driveway and thereafter, take off speeding down the road. Mr. DeSousa testified that Calvagno's "car exploded every morning" and despite closing their windows, Plaintiffs could still "hear the noise and feel the vibration" (see the minutes from Mr. DeSousa's May 3, 2023 deposition annexed hereto as Exhibit A at 35). Likewise, Mrs. DeSousa testified that Calvagno's vehicle sounds like a "rocket taking off" each morning and that it literally shakes her bed (see the minutes from Mrs. DeSousa's August 10, 2023 deposition annexed hereto as Exhibit B at 10-11). The explosion of noise and vibration caused by Calvagno's vehicle and driving occurred nearly every morning around 6 a.m. to 7 a.m. for years (see Affidavit of Mr. DeSousa).

13. Annexed hereto as Exhibit C, are photographs depicting the decibel readings taken by Plaintiffs from inside their home of the noise caused by Calvagno's vehicle and driving. Under VTL §375(31)(a) and the Village of Amityville Code §114-3, it is unlawful to cause excessive or unusual noise (see also, *People v. Carver*, 41 Misc. 3d 853 (Sup. Ct., Bronx County 2013), aff'd, 147 A.D.3d 415 (2017) (finding probable cause to effect traffic stop where police officer found muffler to be "loud"). New York State further regulates the sound level emitted from

a motor vehicle on a public highway (see VTL §386). Under VTL §386, it is illegal to operate a motor vehicle weighing less than 10,000 pounds upon a public highway in excess of 76 dB(A) while traveling 35 mph or less or, if over 35 mph, in excess of 82 dB(A) (see VTL §386(3)(b)). Plaintiffs' decibel readings, which are unrefuted by Calvagno, indisputably establishes that Calvagno's vehicle repeatedly caused sounds exceeding 75 dB(A) inside Plaintiffs' home, even reaching as high as 79.9 dB(A), in violation of VTL §375(31)(a), VTL §386, and the Village of Amityville Code §114-3. The unlawful noise caused by Calvagno has transformed the inside of Plaintiffs' home into a busy traffic intersection each morning,² and is therefore, a substantial and unreasonable interference with their property.

14. Plaintiffs also established that Calvagno's conduct has impacted the right to use and enjoy their property. The excessive noise and vibrations caused Mr. DeSousa to suffer from an upset stomach, nervousness, and sleeplessness (Exhibit A at 38, 40, and 44). Annexed hereto as Exhibit D, is an Assessment Report from Mr. DeSousa's treating doctor, Dr. Ronald I. Cohen. Dr. Cohen finds that Mr. DeSousa "experiences ongoing trauma and repeated exposure to overwhelming noise with respect to [Calvagno's vehicle]." Dr. Cohen notes the "prolonged psychological distress [caused by this dispute] has produced increasing guardedness, panic reactions, loss of sleep and pervasive distrust" and that Mr. DeSousa is "consistently affected by the ongoing overwhelming stress related to the volatile relation with his neighbor." Likewise, Mrs. DeSousa testified that she is unable "to sleep late in the morning" because the noise is "so loud" that it shakes her bed (Exhibit B at 11). She further testified that she no longer takes walks on her street because of the danger posed by the sound of Calvagno's vehicle and his reckless driving

² The average decibel level of a busy traffic intersection is between 70-80 dB(A). See Bolt, Beranek and Newman, *Fundamentals and Abatement of Highway Traffic Noise*, U.S. Department of Transportation, Federal Highway Administration, National Highway Institute, 1973; see also, [Living With Noise | FHWA \(dot.gov\)](https://www.fhwa.dot.gov/livewithnoise/)

(Exhibit B at 13-14). Mrs. DeSousa also suffers from nausea and an upset stomach from the noise to the point where she must take over-the-counter medicine to treat her symptoms (Exhibit B at 12-13).

15. In opposition, Calvagno argues that his conduct did not amount to a nuisance because the police purportedly advised Plaintiffs his vehicle and driving were not illegal and he was never ticketed or summoned. Additionally, Calvagno relies on a letter from Westbury Jeep as evidence that he did not modify his exhaust system as Plaintiffs' contend, and therefore, an unmodified, stock vehicle cannot be the source of a nuisance. Each of these arguments by Calvagno is unavailing and should be rejected in their entirety.

16. Contrary to Calvagno's contentions, the police did not in fact conclude his vehicle and driving were lawful. Annexed hereto as Exhibit E are two police reports from Mr. DeSousa and made on May 26, 2021 and February 11, 2022 complaining of Calvagno's reckless driving and the excessive noise from his vehicle. Notably, in Plaintiffs' May 26, 2021 report, the police advised Mr. DeSousa to "call [the police] when [Calvagno's] car is idling so that [they] may respond and *take action if needed*" (Exhibit E). In fact, the police parked up the block to catch Calvagno in the act on at least one occasion and was ticketed (Exhibit A at 28-29). Furthermore, annexed hereto as Exhibit F, is a police report from Plaintiffs' neighbor, Elizabeth Ranker, made on February 19, 2022. In the narrative section of the report, it notes that Ranker called to complain that Calvagno was operating his vehicle in a reckless manner. Police note that "[they] are aware of *[Calvagno] operating in a reckless manner in the past*" (Exhibit F). These statements made by the police completely refute Calvagno's claim that the police "assured" Plaintiffs that his car and driving did not violate any laws. It also bears mentioning that other neighbors complained of Calvagno's vehicle and driving as well. Annexed hereto as Exhibit G, are email communications

between Plaintiff and two former neighbors, Pat Schneider and James Veneziano, complaining about the noise generated from Calvagno's vehicle. The complaints made by Ranker, Schneider, and Veneziano, similarly refutes Calvagno's claim that "NO other neighbors have lodged a complaint [against Calvagno] or joined with Plaintiffs" (see [NYSCEF #38 at 4](#)).

17. Even if the police determined Calvagno did not violate any laws, such evidence alone does not defeat a claim for private nuisance where, as here, Plaintiffs have demonstrated that the conduct at issue has caused an adverse effect on the use and enjoyment of their property. In *Broxmeyer v. United Cap. Corp.*, 79 A.D.3d 780 (2d Dep't 2010), the plaintiffs commenced suit against defendants, owners of a neighboring apartment building, because of the noise generated by HVAC units located on top of defendants' property. Even though the noise was found not to violate the local village code, the court nevertheless denied defendants' motion for summary judgement because plaintiffs submitted affidavits that the noise adversely affected the enjoyment of their apartment homes (*Broxmeyer*, 79 A.D.3d at 783). The same outcome has been reached in similar cases. Compare *Aristides v. Foster*, 73 A.D.3d 1105 (2d Dep't 2010) ("the defendants failed to refute the plaintiffs' statements in their deposition testimony...that trucks delivering goods to the 7-Eleven store, as well as patrons of the store, frequently, even daily and multiple times during the course of some days, park their vehicles in front of the plaintiffs' home, blocking the plaintiffs' access thereto, and leave the vehicles idling, emitting noise and fumes." *Id.* At 1106); see also, *Donnelly v. Nicotra*, 55 A.D.3d 868 (2008) (plaintiffs' affidavits raised triable issues of fact with respect to reasonableness of defendants' activities and the degree of interference with plaintiffs' use and enjoyment of their land).

18. There also exists a triable issue of fact as to whether Calvagno intentionally modified his exhaust system to make his vehicle even louder. Calvagno submitted a letter from

Westbury Jeep signed by its Service Director, Steve Garguilo, indicating that the vehicle had not been modified from its factory equipment (see [NYSCEF#44](#)). Calvagno argues this letter indisputably refutes Plaintiffs' claims that he modified his vehicle's exhaust system. This claim by Calvagno and his counsel, however, is directly contradicted by Garguilo's deposition testimony (see [NYSCEF #45](#)).

19. In the Westbury Jeep letter, Garguilo indicated that an inspection of Calvagno's vehicle was performed on June 17, 2021, and that such inspection determined the exhaust system was not modified (see [NYSCEF#44](#)). Despite signing the letter and attesting to these claims, Garguilo testified he "did not know" if the car was inspected, as there is no record of the inspection ever taking place ([NYSCEF #45 at 13-17](#)). This fact was confirmed by Westbury Jeeps' response to Plaintiff's subpoena for its inspection records, which showed there was no record that Calvagno's vehicle was ever inspected. Garguilo also, personally, did not perform any inspection of the vehicle either ([NYSCEF #45 at 15](#)). Most significantly, William Wurster, the Shop Foreman at Westbury Jeep, testified that they would *not* check exhausts or mufflers nor decibels during any inspection (see William Wurster's deposition minutes annexed hereto as Exhibit H at 16, 22-23). It also bears mentioning that Calvagno has a longstanding business relationship with Westbury Jeep through his employer (see Calvagno deposition minutes annexed hereto as Exhibit I at 33). It can be plausibly inferred that Westbury Jeep simply prepared this letter on behalf of Calvagno as a favor based on their longstanding and lucrative business relationship.

20. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law as to whether the noise generated by his vehicle constituted a private nuisance.

ii. Commercial Use of Property – Boat Slip Rentals

21. Plaintiffs have raised a triable issue of fact that Calvagno's use of his bulkhead space has interfered with Plaintiffs' right to use and enjoy their land. Mr. DeSousa testified that he has observed an excessive number of boats being stored at Calvagno's bulkhead in his backyard (Exhibit A at 45) and submitted photographs depicting at least four (4) boats currently parked at Calvagno's private slip (see Exhibit J). Mr. DeSousa testified that he has witnessed "cars parked in the street" and people traveling back and forth between their boats (Exhibit A at 46). Mr. DeSousa also testified that these individuals substantially and unreasonably interfered with his property because they consistently parked in front of his home and blocked his driveway (Exhibit A at 59-61).

22. Additionally, on March 10, 2021, Calvagno attended a Board of Trustees hearing at the Village of Amityville to request an exemption from the Village's four boat maximum storage regulation (see Mr. DeSousa's Affidavit). Although Calvagno's application was denied, he continued to store boats in an amount that exceeded the maximum allowable storage amount, having stored at least five boats on several occasions (Mr. DeSousa's Affidavit). All of the foregoing evidence supports Plaintiffs' contention that Calvagno rents his bulkhead space in violation of the Village of Amityville Code §183-43 prohibiting commercial activity in B Residence Districts where the property is located.

23. Calvagno does not dispute that the individuals who either store and/or use the boats at his property park in front of Plaintiffs' home and block their driveway. Calvagno's defense is predicated entirely on his own self-serving claims that he does not rent boat slips in his backyard. However, the issue of whether he unlawfully rents boat slips is not dispositive on whether he has committed a private nuisance (*Broxmeyer*, 79 A.D.3d at 783). Notwithstanding, there continues to

exist triable issues of material fact concerning whether Calvagno unlawfully rents his boat slips.

24. In his motion, Calvagno relies entirely on his own self-serving and incredible testimony and references testimony in an unrelated matter by Vincent Camarda - an individual that keeps his boat at Calvagno's property and who is also being sued by Plaintiffs and several other neighbors. As shown below, Calvagno's incomplete and contradictory testimony exacerbates the already existing disputed material facts.

25. Initially, Calvagno admits that he previously attempted to obtain permission from the Village of Amityville to store boats at his bulkhead in his yard but was ultimately denied a permit (Exhibit I at 143). This admission is significant as it raises the inference that he intended to lease boat space in his backyard. Further damaging his credibility, Calvagno admits that he continued to allow third parties to store boats at his property even though he was denied a permit - a clear violation of the law (Exhibit I at 143).

26. When questioned about the identity of the individuals who owned the boats kept at his property, Calvagno testified they belonged to "friends and family" and initially refused to disclose their identities (Exhibit I at 127-129). Calvagno later identified "friends" who stored their boats, but no family members, directly contradicting his testimony from minutes earlier. He testified that one of the boats belonged to his "neighbor Vinny" (or Vincent Camarda) but purportedly did "not know" his last name (Exhibit I at 129). He testified that the second boat belonged to a friend, Mark Hanover (Exhibit I at 131). Calvagno also identified "Justin M." and "Branny" as the owners of the remaining two boats. Calvagno testified he has "known [Justin M.] for a long time" but incredibly does not know his last name or where he lives (Exhibit I at 132-133). Calvagno also incredibly testified that he does not know Branny's last name either (Exhibit I at 133). When asked to provide Branny's phone number Calvagno refused (Exhibit I at 134). He

similarly testified that he did not know Justin M.'s phone number and incredibly claimed both Branny and Justin M.'s phone numbers were written down somewhere at home and not saved as a contact in his cellphone (Exhibit I at 134-135). The actual identity or contact information for these individuals was never provided.

27. Calvagno's Affidavit and prior discovery disclosures further calls into question his incredible, incomplete, and contradictory deposition testimony. At the outset of this case, he identified Vincent Camarda as a witness to his claims and defenses and admits that "Vinny" is in fact Vincent Camarda in his Affidavit ([NYSCEF #37 at 9-10](#)). This directly contradicts his deposition testimony that he did not know "Vinny's" last name. Calvagno also cites Camarda's testimony in an unrelated action where he denies paying rent to Calvagno to store his boat. However, Calvagno conspicuously avoids reference to Mark Hanover, "Branny" and "Justin M." in his Affidavit. Calvagno did not provide any affidavits from these individuals either. Calvagno's lack of evidence and incredible testimony raises an inference that he in fact leases dock space in violation of law.

28. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law as to whether the use of his bulkhead space constitutes a private nuisance.

iii. Commercial Use of Property – Parties and Catering

29. Plaintiffs have raised a triable issue of fact concerning whether Calvagno's parties interfered with Plaintiffs' right to use and enjoy their land. Mr. DeSousa testified that Calvagno hosted a wedding in October 2020, and observed a catering truck bringing in tables (Exhibit A at 47). Mr. DeSousa testified that Calvagno hosted other parties (Exhibit A at 49) and in his Complaint, identified another event in which he hosted more than 50 guests on or about November

28-29, 2020 ([Verified Complaint; NYSCEF# 2 at 5](#)). Plaintiffs also established that these parties have substantially and unreasonably interfered with their property rights because they are “loud, noisy, and run well into the early hours of the following morning” ([NYSCEF#2 at 5](#)); and people would “park all over the street,” including in front of Plaintiffs’ home, and that the traffic and congestion from these activities made it that you could not “walk up and down the block,” “get out of your house” or driveway (Exhibit A at 59, 61). The numerous amount of parties, significant number of guests, and catered services, supports an inference that Calvagno also unlawfully charged to host these parties in violation of Village of Amityville Code §183-43 prohibiting commercial activity in B Residence Districts where the property is located.

30. Calvagno does not dispute Plaintiffs’ claims that his parties are crowded, noisy, and run well into the early hours of the following morning. He also does not dispute that the individuals who attended his parties park in front of Plaintiffs’ home, block their driveway, and cause traffic and congestion. Like his earlier defense relating to his dock rentals, Calvagno only asserts he does not lease his yard or engage in any catering related business. Again, the issue of whether he unlawfully uses his property for commercial use is not dispositive on whether his conduct constituted a private nuisance (*Broxmeyer*, 79 A.D.3d at 783).

31. Even so, there exists triable, material issues of fact concerning whether Calvagno uses his property for an unlawful commercial purpose. Here, Calvagno testified that he hosted a wedding in his backyard in October 2020 for his friend “Elaine,” who he has known since high school (Exhibit I at 141). When asked to identify “Elaine’s” full name, he incredibly testified he could not recall her married name or how to spell her maiden name (Exhibit I at 141). Calvagno further contradicts his testimony in his Affidavit. He claims Plaintiffs only complain of “two (2) parties at [his] home” ([NYSCEF#37](#)), however, this ignores both Mr. DeSousa’s testimony and

his own testimony in which he admitted to having “parties all the time at [his] house” (Exhibit I at 142). Calvagno further failed to provide an affidavit from “Elaine,” or anyone else, attesting to his claim that he gratuitously held these parties at his home.

32. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law as to whether his parties constitute a private nuisance.

iv. Trash and Debris

33. Plaintiffs have raised a triable issue of fact that Calvagno’s allowance of trash and debris to collect in front of his property has interfered with Plaintiffs’ use and enjoyment of their property. The Village of Amityville Code prohibits “refuse, trash, garbage, debris, decomposable matter or discarded appliances to accumulate or remain” on property (§97-3) or from collecting in the street (§97-9). In violation of the Amityville Code, Calvagno has allowed litter and uncovered trash and debris to gather on his property and in the street. Annexed hereto as Exhibit K, are photographs of trash and debris all over Calvagno’s property. Mr. DeSousa testified that trash and debris have been consistently present at Calvagno’s property for extended periods of time (Exhibit A at 49-50). As a result of the trash and debris, Mr. DeSousa was required to hire an exterminator to treat a rat infestation at his home (Exhibit A at 52). Annexed hereto as Exhibit L, is an invoice from the exterminator. Calvagno does not dispute that his conduct caused a rat infestation on Plaintiffs property nor that he allows uncovered garbage to be placed in front of his home in violation of the Amityville Code (see Exhibit I at 53; see also, §97-3 stating garbage “shall be disposed of promptly and, while awaiting disposition, shall be kept covered, contained or otherwise secured”).

34. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law as to whether his allowance of trash and debris to collect in front

of his property constitutes a private nuisance.

C. Second Cause of Action: Public Nuisance

35. “A public nuisance exists for conduct that amounts to a substantial interference with the exercise of a common right of the public, thereby offending public morals, interfering with the use by the public of a public place or endangering or injuring the property, health, safety or comfort of a considerable number of persons. A public nuisance is a violation against the State and is subject to abatement or prosecution by the proper governmental authority” (532 *Madison Ave. Gourmet Foods, Inc. v. Finlandia Ctr., Inc.*, 96 N.Y.2d 280 (2001)). “A public nuisance is actionable by a private person only if it is shown that the person suffered special injury beyond that suffered by the community at large.” *Id.* at 292, citing, *Burns Jackson Miller Summit & Spitzer v. Lindner*, 59 N.Y.2d 314 (1983)).

36. Here, Calvagno’s conduct has caused a public nuisance, specifically by creating loud and excessive noise that disturbs the public; recklessly driving and speeding up and down the public roadways; unlawfully using his property for commercial purposes; causing unwanted traffic and congestion; and unlawfully allowing trash and debris to collect in front of his home. While this conduct affects the neighborhood generally, Plaintiffs have suffered special damages beyond the community at large.

37. First, the positioning of Calvagno’s vehicle, with its exhaust directed towards the Plaintiffs’ residence, not only causes unreasonable and excessive noise, but deep and powerful vibrations throughout their home (Exhibit A at 35; see also, Exhibit B at 11). The vibrations caused by Calvagno’s vehicle literally shakes Plaintiffs’ bed (Exhibit B at 11), unlike others who merely suffer the sound of the excessive noise and reckless driving alone (see Exhibits F and G). While the individuals who store their boats on Calvagno’s property and attend his parties increase traffic

and congestion in the neighborhood, unlike others, these individuals routinely park in front of Plaintiffs' home and block their driveway, making it so they cannot "get out of their house" (Exhibit A at 59-61). Plaintiffs also incurred a rat infestation because of the trash and debris existing on Calvagno's property (Exhibit A at 52). Since Plaintiffs' have demonstrated special injuries above and beyond that suffered from the community at large, they have properly asserted a cause of action for public nuisance against Calvagno (*see, Leo v. Gen. Elec. Co.*, 145 A.D.2d 291 (2d Dep't 1989) (finding pollution of Hudson River created public nuisance private right of action for commercial fishermen who lost ability to earn a living unlike recreational fishermen)).

38. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law on Plaintiffs' public nuisance claim.

D. Third Cause of Action: Nuisance Per Se

39. Nuisance per se is a nuisance based on an act which is unlawful, even if performed with due care (*State v. Fermenta ASC Corp.*, 238 A.D.2d 400, 403 (2d Dep't 1997) citing *Delaney v. Philhern Realty Holding Corp.*, 280 N.Y. 461, 465 (1939)). "In an action based on a theory of nuisance per se, the plaintiffs need only establish a violation of law, and need not show that the nuisance was intentional or negligent." *Id.* "They must still, however, establish the remaining elements of the cause of action" *Id.*; see also, *Overocker v. Madigan*, 113 A.D.3d 924 (3d Dep't 2014).

40. As set forth in Section B, above, Plaintiffs have properly established that Calvagno's conduct violates state and/or local law. The excessive noise generated by Calvagno's vehicle violates both VTL §375(31)(a) and the Village of Amityville Code §114-3. Calvagno has also violated VTL §386(3)(b), which prohibits sounds in excess of 76 dB(A) upon a public

highway.³ Furthermore, the Village of Amityville Code prohibits commercial activity in B Residence Districts where the property is located (§183-43). The Village of Amityville Code also prohibits “refuse, trash, garbage, debris, decomposable matter or discarded appliances to accumulate or remain” on property (§97-3) or from collecting in the street (§97-9). Plaintiffs have also established the remaining elements of a private nuisance action against Calvagno (see Section B).

41. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law on Plaintiffs’ nuisance per se claim.

E. Fourth Cause of Action: Intentional Infliction of Emotional Distress

42. “In order to establish intentional infliction of emotional distress, the plaintiff must prove four elements: (1) extreme and outrageous conduct (2) intent to cause, or disregard of a substantial probability of causing, severe emotional distress; (3) a causal connection between the conduct and injury; and (4) severe emotional distress. The tort of intentional infliction of emotional distress predicates liability on the basis of conduct which is “so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community” (*Murphy v. Am. Home Prod. Corp.*, 58 N.Y.2d 293, 303 (1983); *Marilyn S. v. Indep. Grp. Home Living Program, Inc.*, 73 A.D.3d 895, 897 (2d Dep’t 2010).

43. Here, Plaintiffs have established Calvagno’s conduct was extreme and outrageous. Nearly everyday, since at least OctoberNovember, 2020, and throughout this proceeding, Calvagno has idled, revved, and sped away up the block in his high-performance Dodge Charger

³ A “public highway” is defined as any road, street, or other public way (see VTL §134). The definition of a “public highway” therefore includes the Plaintiffs’ street.

Hellcat. This conduct has caused the sound inside Plaintiffs' home to exceed 75 dB(A) and has rendered deep, powerful reverberations that "shakes [their] bed" (Exhibit B at 11). As a result, Calvagno has purposely transformed Plaintiffs' home into a busy traffic intersection⁴ each morning in the early hours of 6 a.m. to 7 a.m. In addition, over the same period of time, Calvagno continuously held large parties, allowed people to use his bulkhead space, and permitted trash and debris to collect in front of his yard. Such conduct has substantially and unreasonably interfered with Plaintiffs property by preventing them from "get[ting] out of [their] house" (Exhibit A at 61) and causing a rat infestation on their property, among other things. This deliberately malicious, years' long campaign of harassing and unlawful conduct targeted at Plaintiffs constitutes sufficiently extreme and outrageous conduct. *See, Silverman v. Park Towers Tenants Corp.*, 206 A.D.3d 417 (1st Dep't 2022); *Mitchell v. Giambruno*, 35 A.D.3d 1040 (3d Dep't 2006).

44. Mr. DeSousa's severe emotional distress is also supported by medical evidence. Here, Mr. DeSousa has submitted a report from his doctor, Dr. Ronald I. Cohen (Exhibit D). Dr. Cohen notes Mr. DeSousa "experiences ongoing trauma and repeated exposure to overwhelming noise with respect to [Calvagno's vehicle]." This "prolonged psychological distress has produced increasing guardedness, panic reactions, loss of sleep and pervasive distrust" and is "consistently affected by the ongoing overwhelming stress related to the volatile relation with his neighbor." Finally, Dr. Cohen notes "Mr. DeSousa's chronic cardiovascular disease has been consistently affected by the ongoing overwhelming stress related to the volatile relation...trigger[ing] numerous episodes of dizziness and extreme chest pains." Additionally, Mrs. DeSousa testified that she is unable "to sleep late in the morning" because the noise is "so loud" that it shakes her

⁴ Bolt, Beranek and Newman, *Fundamentals and Abatement of Highway Traffic Noise*, U.S. Department of Transportation, Federal Highway Administration, National Highway Institute, 1973; see also, [Living With Noise | FHWA \(dot.gov\)](https://www.fhwa.dot.gov)

bed (Exhibit B at 11). Mrs. DeSousa also testified she suffers from nausea and an upset stomach to the point where she must take over-the-counter medicine to treat her symptoms (Exhibit B at 12-13). Since Plaintiffs have submitted medical evidence of severe emotional distress, whether plaintiff's mental suffering was genuine and extreme is a question for the jury [*Murphy v Murphy*, 109 AD2d 965, 967 (3d Dept 1985); *see also, Halio v Lurie*, 15 AD2d 62 (2d Dept 1961)]; and Restatement, Torts 2d, § 46).

45. For all the reasons set forth above, Calvagno has failed to establish his entitlement to judgement as a matter of law on Plaintiffs' intentional infliction of emotional distress claim.

F. Calvagno's Remaining Contentions

i. Pleading Defect

46. Calvagno argues that Plaintiffs' inadvertent mistake in their pleadings identifying themselves, as opposed to Calvagno, as the owner of Calvagno's property is incurably fatal. Under CPLR §3026, pleadings shall be "liberally construed" and defects shall be ignored if a substantial right of a party is not prejudiced. Here, Calvagno has failed to show any prejudice as a result of this error.

47. On the contrary, Plaintiffs' Complaint was "sufficiently particular to give the court and parties notice of the transactions, occurrences, or series of transactions or occurrences, intended to be proved and the material elements of each cause of action or defense" (see CPLR §3013). Plaintiffs otherwise correct identification and description of Calvagno's property, and Calvagno's tortious use thereof, renders this typographical mistake inconsequential and "as de minimis as an error can be." *See, Torres v. Torres*, 13 Misc. 3d 1167, 1169-70 (Civ. Ct. 2006)).

48. For all the reasons set forth above, Calvagno's claim that Plaintiffs' de minimis typographical error mandates dismissal of the action should be denied.

ii. Counsel Fees

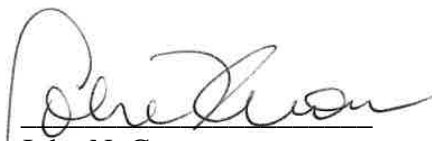
49. Calvagno's claim for counsel fees must be denied in its entirety. Pursuant to 22 NYCRR Section 130-1.1, a court, in its discretion, may award to any party or attorney in any civil action attorney's fees resulting from frivolous conduct.

50. Calvagno contends that he is entitled to attorney's fees because Plaintiffs' claims are "completely without merit." However, as Plaintiffs have set forth above at length, each of Plaintiffs' claims were made in good faith and are in fact meritorious. Accordingly, Calvagno's demand for cost and/or attorneys' fees should be denied.

CONCLUSION

For all the foregoing reasons, Calvagno's motion for summary judgement should be denied in its entirety.

Dated: Commack, New York
June 12, 2024



John N. Cuomo
Attorney for Plaintiffs
Diane and Thomas DeSousa
11 Fern Drive
Commack, New York 11725
631-403-0515

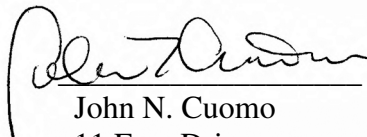
CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that foregoing Affirmation was completed using a word processing system and that I have relied on that system's word count in preparing this certification and word count:

The total words, excluding those permitted to be excluded (caption, signature block) is 5,701.

Dated: Commack, New York
June 12, 2024

Yours, etc.,

A handwritten signature in black ink, appearing to read "John N. Cuomo", written over a horizontal line.

John N. Cuomo
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Commack, NY 11725
631-403-0515